

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/12/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
5	30-2026-01545785 Luk vs. Johnson	Pending check back later
6	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Defendant's Motion to Compel Further Responses to Form Interrogatories (ROA 63), Motion to Compel Further Responses to Special Interrogatories (ROA 66), Motion to Compel Production/Inspection of Documents or Things (ROA 69), and the Plaintiff's Oppositions to Each of the Defendant's Motions (ROA 78, 80 & 82). The Court takes Judicial Notice of the Request to Set Case for Trial (ROA 26), filed 5/8/2026; the Demand for Jury Trial (ROA 35), filed 5/11/2026; the Substitution of Attorney (ROA 32/33), filed 5/11/2026; the Clerk's Certificate of Mailing/Electronic Service (ROA 29); the Clerk's Certificate of Mailing/Electronic Service (ROA 59); and the 5/22/2026 Minute Order. Here, the Plaintiff filed a Request to Court the Case for Court trial on 5/8/2026. On 5/11/2026, Asian Americans Advancing Justice Southern California filed a substitution of attorney for the Defendants and filed a timely demand for a jury trial. On 5/12/2026, the Court Clerk's office mistakenly set the matter for a Court Trial and failed to provide notice to

		Asian Americans Advancing Justice Southern California, sending notice only to the Defendants personally. On May 22, 2026, this Court noticed the error made by the Clerk's Office in setting the matter for a Court Trial when there was a timely demand for a jury trial, so in Chambers the Court issued the Minute Order of 5/22/2026 (ROA 58) vacating the court trial of 5/26/2026 and setting a pretrial conference for 6/12/2026 and a jury trial for 6/15/2026. On May 22, 2026, the C61 Clerk notified the attorneys of the parties via email of the 5/22/2026 Minute Order. The initial trial date for this matter is June 15, 2026. There were no continuances or postponements filed, but a clerical error in the Court Clerk's office of failing to review the Court Docket, which showed that there was a demand for a jury trial, and failing to notify the attorney of record properly. As such, the Court is ordering that the discovery request made by the Defendant's Counsel was timely. It is understandable that Plaintiff's counsel may have been confused by the error created by the first issuing of the court trial notice by the clerk's office. Considering these facts, the Court will order the Plaintiff's counsel to respond to the discovery request within 5 days. The Court will not issue sanctions against the Plaintiff. Counsel for both parties are ordered to meet and confer prior to the pretrial date. Given the amount of time for this motion and the need for discovery responses, the Court will advance and vacate the currently set pretrial and jury trial date and reset the pretrial hearing for June 26, 2026, at 8:30 AM in Department C61 and Jury Trial for June 29, 2026, at 8:30 AM in Department C61.
11	30-2026-01569971 CJS Pinemeadows Apartments, L.P. vs. Gonzales	The Court has read and considered the Defendants' Motion to Strike Complaint (ROA 32) and the Complaint (ROA 2). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 8, 10 & 14). The Court DENIES the Motion to Strike Complaint. California Code of Civil Procedure §435(b)(1) requires a motion to strike to be filed within the 10 business days of service of the summons and complaint. Under California Code of Civil Procedure §1014, a motion to strike is an appearance with the court; the Defendants are precluded from filing a motion to quash service following the filing of a Motion to Strike. Furthermore, California Code of Civil Procedure §435(d) does not extend time to file a demurrer. Therefore, because it has been well past the 10 business days following service of the Summons and Complaint on May 18 & 19, 2026, the Defendants are ordered to file an Answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
12	30-2026-01565351 Regency Palms, LP vs. Riccobono	Pending check back later
13	30-2026-01566479 Kashani vs. Hogle	As a threshold matter, Farnaz Rahimi Kashani, as Trustee of the ERK Living Trust, filed this unlawful detainer complaint in pro per. Pursuant to California

		law established in <i>Merco Constr. Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal.3d 724 and <i>Ziegler v. Nickel</i> (1998) 64 Cal.App. 4th 545, 547-549: Corporations, LLCs, and Trusts need to be represented by an attorney in civil proceedings. The Court has read and considered the Motion to Substitute In As Real Party in Interest and Dismiss Action (ROA 18) and Notice of Related Case (ROA 34). The Court has read and considered the Request for Judicial Notice filed by Real Party in Interest for Richard Huntington, Trustee of the 2014 Mehdi Rahumi Kashani Fard Trust. The Court takes Judicial Notice of Exhibit A-S. Specifically, as to Exhibit R, in which Judge Susel Carrillo-Orellana on 3/30/2026 made findings as to the premises property located at 31053 Avenida de la Vista, San Juan Capistrano, CA 92675. Judge Carrillo-Orellana found that Farnaz Rahimi Kashani was not the proper trustee when filing the unlawful detainer petition for the premises property at 31053 Avenida de la Vista, San Juan Capistrano, CA 92675; Richard Huntington was the proper trustee of the premises. The Court finds 31053 Avenida de la Vista, San Juan Capistrano, CA 92675 is the same property as the one indicated in Exhibit R. Res Judicata applies to this matter as a Court has already determined that Farnaz Rahimi Kashani does not have the right to file an unlawful detainer action regarding this property as Farnaz Rahimi Kashani is not the owner of the property and not the trustee of the property. Farnaz Rahimi Kashani had no legal authority to file this unlawful detainer action regarding the premises at the address; therefore, the case is dismissed with prejudice.
14	30-2015-00803737 Ocean Breeze Villas vs. Florida	The Court has read and considered the Defendant's Motion to Vacate Renewal of Judgment (ROA 51) and Declaration in Support of the Motion (ROA 52). The Court takes Judicial Notice of the Application for and Renewal of Judgment (ROA 35), Proof of Service by Mail (ROA 41), Memorandum of Costs After Judgment (ROA 43), Writ of Execution (ROA 44), Writ of Possession Returned – Wholly Satisfied (ROA 22), Writ (07/11/2018 Issued) (ROA 32), and Declaration of Address Verification (ROA 47). California Code of Civil Procedure § 683.170(a), states “The renewal of a judgment pursuant to this article may be vacated on any ground that would be a defense to an action on the judgment, including the ground that the amount of the renewed judgment as entered pursuant to this article is incorrect, and shall be vacated if the application for renewal was filed within five years from the time the judgment was previously renewed under this article.” California Code of Civil Procedure §683.160(a) states, “The judgment creditor shall serve a notice of renewal of the judgment on the judgment debtor. Service shall be made personally or by first-class mail and proof of service shall be filed with the court clerk. The notice shall be in a form prescribed by the

		Judicial Council and shall inform the judgment debtor that the judgment debtor has 60 days within which to make a motion to vacate or modify the renewal.” The original address of the premises subject to the unlawful detainer proceedings was 6401 Warner Ave. #525, Huntington Beach, CA 92647, based on the Writ of Possession (ROA 22), which was filed on 9/30/2015. The Writ that was issued in July of 2018 as to the Defendants at an address of 7701 Warner Ave. Apt. L174, Huntington Beach, CA 92647 (ROA 32). The Proof of Service by Mail (ROA 41) serves both Defendants at 6200 Edinger Ave., Apt. 832, Huntington Beach, CA 92647 on 1/7/2026 with the “Notice of Renewal of Judgment, Application for Renewal of Judgment”, although the Application for and Renewal of Judgment (ROA 35) was filed with the Court on 10/7/2025. ROA 42 shows two different addresses for service, including 7281 La Mancha Cir, Apt. C, Huntington Beach, CA 92647, signed 2/6/2026, less than a month from the Proof of Service by Mail (ROA 41). Defendant Anna Grabowska provided documentation that she has resided at the same location, 7281 La Mancha Circle Apt. C, Huntington Beach, CA 92648, since June 2020. Plaintiff failed to timely serve on the Defendant the Application for Renewal of Judgment at the correct address for the Defendant. Additionally, there is no evidence lodged with the Court showing that the Plaintiff complied with the requirement to notify the judgment debtor that the judgment debtor has 60 days within which to move to vacate or modify the renewal. The Court VACATES the Renewal of Judgment and QUASHES the Writ of Execution issued on 4/22/2026. The Court Clerk is to notify the Orange County Sheriff’s Department that the Writ of Execution issued on 4/22/2026 is QUASHED. The Court Clerk is to provide notice of the Court’s ruling.
15	30-2026-01555485 Phan vs. Lu	The Court has read and considered the Defendant’s Motion to Set Aside Default Judgment (ROA 34) and Supplement Declaration and Supplemental Exhibits in Support of Motion (ROA 41). The Court SETS ASIDE the default judgment entered on 5/18/2026. The Court finds the Defendant met its burden under California Code of Civil Procedure section 473(b). The Court QUASHES the Writ of Possession and CANCELS the lockout. The Court Clerk is to notify the Orange County Sheriff’s Department that the Writ of Possession is Quashed and the Lockout canceled. The Defendant is ordered to file an Answer today (6/12/26) no later than 4 PM at the Clerk’s office. The Court Clerk is to notify the parties of the Court’s ruling.

16	30-2026-0156393 Park II Spectrum LLC vs. Chen	The Court has read and considered the Defendants' Demurrer to the Complaint (ROA 24), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 28). The Court OVERRULES the Demurrer. The Defendants are ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to serve notice of the Court's ruling.
17	30-2026-01564943 Hu vs. Holmes	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 15), the Complaint (ROA 2), and the Plaintiff's Opposition (ROA 20). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
19	30-2026-01564523 Cooper Fellowship, Inc. vs. Gideon	Pending check back later
20	30-2026-01570045 The Irvine Company LLC vs. HafezKhorram	The Court has read and considered the Defendants' Motion to Quash Service of Summons (ROA 15). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 8, 12, & 14) and the Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 10). Service was effectively implemented by a registered process server, Yesica Romero Hernandez (PS-002415). Akhtar HafezKhorram and Shahram Mohebbi were served by substitute service on May 24, 2026, at 1:18 PM by the registered process server providing the Summons and other documents to Altar Horam, occupant, and mailing. (ROA 8 & 12) Attached to the Proofs of Service was a declaration of due diligence of prior attempts at personal service. The declaration of due diligence states that Ms. Horam identified herself as the mother of Shiva Mohebbi and contained a description of Ms. Horam. Shiva Mohebbi was personally served on May 19, 2026, at 4:21 PM (ROA 14). California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Defendants have provided no evidence to rebut the presumption under Evidence Code Section 647 other than their own self-serving statements that Shiva was not personally served and that the documents were left at the door. Defendants argue that Akhtar HafezKhorram and Shahram Mohebbi are not residents of the premises address but were simply signers of the lease as "co-signers/guarantors," but provide no evidence to support this claim, such as the lease agreement showing that they signed as guarantors and are not listed as occupants/tenants of the property. Case law such as <i>Zirbes v. Stratton</i> (1986)

	187 Cal. App. 3d 1407, 1416-1417 allows for substituted service, which is reasonably calculated to give notice – the circumstances here are reasonable that it would give notice to the Defendant. The Court DENIES the Defendants' Motion to Quash. Defendants are ordered to file a responsive pleading within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
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